Public International Law

SUBJECTS OF INTERNATIONAL LAW, STATEHOOD

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International Law

SUBJECTS OF INTERNATIONAL LAW, STATEHOOD & RECOGNITION

PART A

Introduction to subjects of international law & Statehood

- States as the primary subjects of international law
- Emerging actors beyond the state
- Statehood (criteria, recognition, contested statehood)

PART B (online)

Statehood (cont.)

- Modes of acquisition of territory
- Self-determination

PART C (online)

International Organisations

- What is an international organization
- Legal personality
- Powers, responsibility and immunities

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Part A. Introduction and Statehood



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1. Subjects of International Law

International Law

SUBJECTS OF INTERNATIONAL LAW



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International Law

DEFINING INTERNATIONAL LAW

Non-intervention

- **Armed Activities on the Territory of the Congo [Democratic Republic of the Congo v Uganda] [Reparations] [2022] para 65:**

  "The Court emphasizes that this case is characterized by Uganda's violation of some of the most fundamental principles and rules of international law, namely the principles of non-use of force and of non-intervention…"

- **Military and Paramilitary Activities in and against Nicaragua [Nicaragua v United States of America] [Merits] [1986] para. 202 ff.** – Confirm that the prohibition is part of CIL - Elaborate on the content of the prohibition:

  "A prohibited intervention must accordingly be one bearing on matters in which each State is permitted, by the principle of State sovereignty. to decide freely. One of these is the choice of a political, economic, social and cultural system, and the formulation of foreign policy. Intervention is wrongful when it uses methods of coercion in regard to such choices, which must remain free ones. The element of coercion, which defines, and indeed forms the very essence of, prohibited intervention, is particularly obvious in the case of an intervention which uses force, either in the direct form of military action, or in the indirect form of support for subversive or terrorist armed activities within another State…"

See recommended readings: Florian Kriener, 'Intervention, Prohibition of, *Max Planck Encyclopedia of Public International Law*, ed Rüdiger Wolfrum (Oxford University Press, 2008)

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International Law

DEFINING INTERNATIONAL LAW

"Public international law consists of rules and principles which facilitate the conduct of states and international organisations in their relations with one another and, in some cases, with individuals, groups and transnational companies."

Office of International Law, Attorney-General's Department, Australian Government

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International Law

SUBJECTS OF INTERNATIONAL LAW

WHAT ARE THE SUBJECTS OF INTERNATIONAL LAW

"A subject of international law is an entity possessing international rights and obligations and having the capacity (1) to maintain its rights by bringing international claims; and (2) to be responsible for its breaches of obligation by being subjected to such claims."

Crawford 'Brownlie's Principles of Public International Law' (2019)

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International Law

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SUBJECTS OF INTERNATIONAL LAW

The question of who is a subject of international law relates to who has international legal personality.

Different capabilities ascribed to subjecthood, e.g.

- Ability to make claims to rights granted under international law
- Power to enter into international diplomatic relations
- Bearing obligations directly imposed by international law
- Capacity to create international law (e.g. make binding treaties)
- Ability to enjoy immunities from other states' jurisdiction

⇒ **States are the only subjects that have full legal capacity**

⇒ **Not all subjects of international law have the same powers:** some subjects have full legal capacity, others have only partial capacity

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SUBJECTS OF INTERNATIONAL LAW

ICJ: *Reparation for Injuries* case (1949)

"The subjects of law in any legal system are not necessarily identical in their nature or in the extent of their rights, and their nature depends upon the needs of the community. Throughout its history, the development of international law has been influenced by the requirements of international life, and the progressive increase in the collective activities of States has already given rise to instances of action upon the international plane by certain entities which are not States…

In the opinion of the Court, the Organization was intended to exercise and enjoy, and is in fact exercising and enjoying, functions and rights which can only be explained on the basis of the possession of a large measure of international personality and the capacity to operate upon an international plane…

Accordingly, the Court has come to the conclusion that the Organization is an international person. That is not the same thing as saying that it is a State, which it certainly is not, or that its legal personality and rights and duties are 'the same as those of a State…

[*Reparation for Injuries Suffered in the Service of the United Nations* (Advisory Opinion) [1949] ICJ Rep 174, 178-179]

Beyond the state: emerging actors

SUBJECTS OF INTERNATIONAL LAW

Individuals



After WWII, emerging belief that individuals may have certain rights under international law



Those rights are exercisable against States….

- Universal Declaration of Human Rights 1948
- European Convention on Human Rights 1950
- International Covenant on Civil and Political Rights 1966

BINDING TREATY LAW…..

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Beyond the state: emerging actors

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Australia violated Torres Strait Islanders' rights to enjoy culture and family life, UN Committee finds

23 September 2022



Beyond the state: emerging actors

SUBJECTS OF INTERNATIONAL LAW

May 1999

Slobodan Milošević indicted for crimes against humanity during the Kosovo War, by the UN's International Criminal Tribunal for the Former Yugoslavia



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Beyond the state: emerging actors

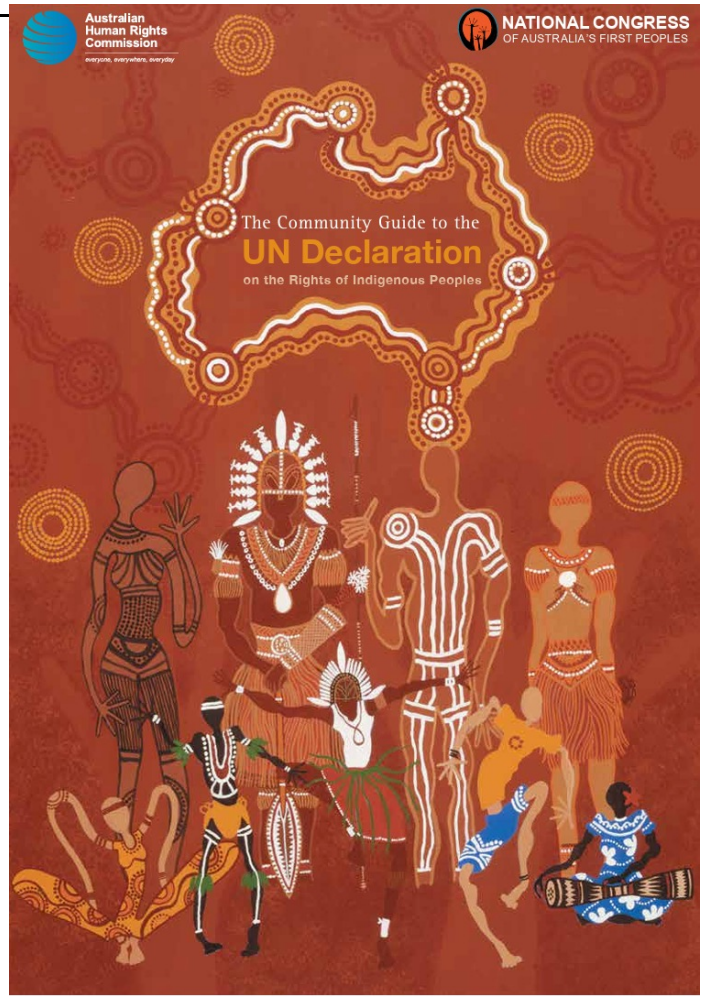
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SUBJECTS OF INTERNATIONAL LAW

Groups of individuals

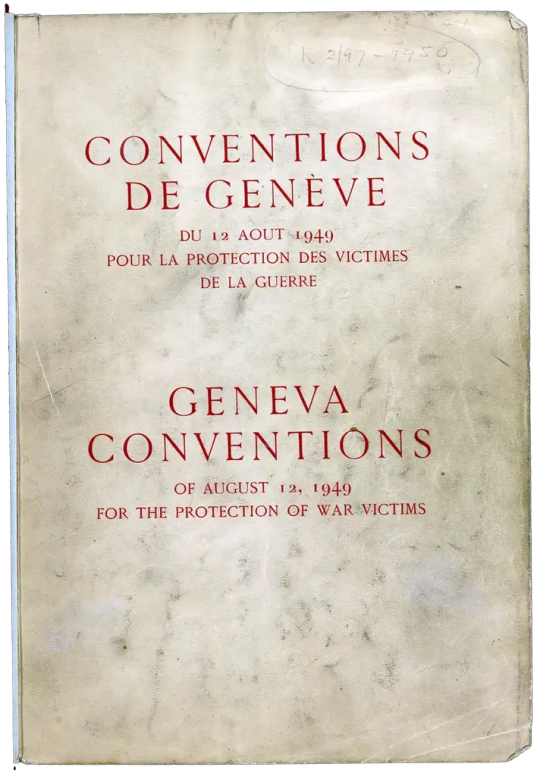
- **Peoples** have attained some rights under international law, such as in relation to self-determination (further discussed); Rights of **indigenous peoples** under international law (e.g. 2007 UN Declaration on the Rights of Indigenous Peoples, ILO, etc.)

- Rights of **minorities** relating to the protection of their culture, language, religion and other characteristics



Beyond the state: emerging actors

SUBJECTS OF INTERNATIONAL LAW



Groups of individuals (cont.)

Non-state armed actors, such as in non-international armed conflicts under International Humanitarian Law (IHL)

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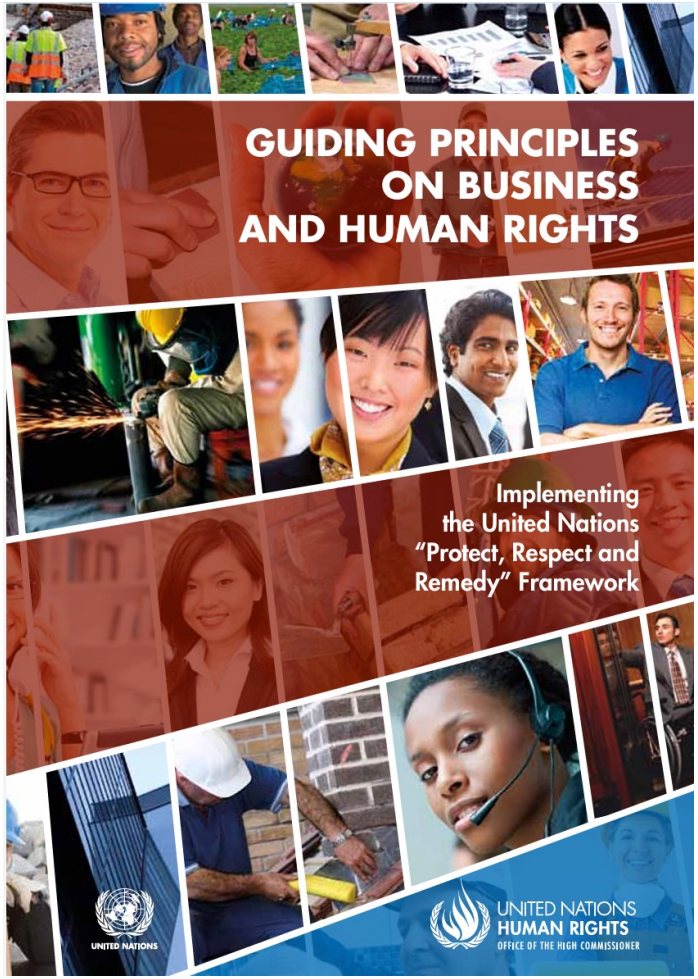
Beyond the state: emerging actors

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SUBJECTS OF INTERNATIONAL LAW

Multinational corporations

- New frontier in international law, subject to much debate
- Provided with certain rights under international economic law (e.g. foreign investment protections)
- To date, no legally binding obligations of multinational companies under international law => push re. human rights, e.g. 2011 Guiding Principles on Business and Human Rights (e.g. Surya Deva's work at MQ)



International Law

SUBJECTS OF INTERNATIONAL LAW

STATES

- The **'nation' state remains the primary subject of international law** with international law traditionally understood as governing the relationships between states

- **States have full legal personality** at the international level, and thus the most comprehensive of rights, duties and competences under international law (e.g. can make international treaties, enforce claims through international tribunals etc.)

- Other actors have emerged as subjects of international law. They do not have full legal personality.

- As a result of decolonisation in the 1950s and 1960s, the **number of UN member states has increased** from 51 to 193 today, and as such, the number of primary subjects of IL.

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2 Criteria of Statehood

International Law

STATEHOOD AND LEGAL PERSONALITY

Article 1 of the Montevideo Convention on Rights and Duties of States (1933):

The state as a person of international law should possess the following qualifications:

a. **a permanent population;**
b. **a defined territory;**
c. **government; and**
d. **capacity to enter into relations with other states.**

=> Widely regarded as codifying customary international law

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International Law

STATEHOOD & RECOGNITION

A) POPULATION

- No fixed or minimum number prescribed (e.g. Nauru around 12,000 inhabitants, China around 1.4 billion) - i.e. the size of the population is irrelevant

- Required is some core population that inhabits the territory on a permanent basis (but the criterion does not relate to nationality)

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International Law

STATEHOOD & RECOGNITION

B) DEFINED TERRITORY

- Generally understood that **states are territorial entities**: cannot exist without a certain territory
- No minimum size prescribed (e.g. Vatican with around 0.5 sq km vs. Russia with 17.1 million sq km)
  [*For comparison: Sydney (inner city) 25 sq kms and 5+ million population*]
- 'Micro states', such as Vatican, Monaco, Nauru, Tuvalu, San Marino, Liechtenstein etc.
- Defined physical boundaries, but does not mean it should be completely fixed or entirely undisputed (e.g. border disputes are a common phenomenon among states) See: North Sea Continental Shelf, ICJ Reports 1969, p.3. para 46:

> "*The appurtenance of a given area, considered as an entity, in no way governs the precise delimitation of its boundaries, any more than uncertainty as to boundaries can affect territorial rights. There is for instance no rule that the land frontiers of a State must be fully delimited and defined, and often in various places and for long periods they are not…*"

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STATEHOOD & RECOGNITION

C) EFFECTIVE GOVERNMENT

- Some form of coherent and **effective** exercise of public power over the territory and population
- State as a 'stable political community supporting a legal order to the exclusion of others in a given area' (Crawford)
- Yet, many governments around the world have proven unable to control parts of the state's territory (e.g. civil war, insurgence, foreign occupation etc.)
  - ⇒ **Fragile or failed states?** (e.g. Somalia, Syria, Yemen, Afghanistan)
  - ⇒ Once statehood is established, it carries a **presumption of continuity**: ineffectiveness of government does not necessarily affect its statehood (but it remains important for establishment and recognition of new states)
  - ⇒ no specific form of government prescribed, e.g. both dictatorships and democracies are irrelevant to statehood

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STATEHOOD & RECOGNITION

D) CAPACITY TO ENTER INTO INTERNATIONAL RELATIONS

- Capacity of a state to contract with other states internationally
- Capacity arises from independence and recognition by other states (e.g. Scotland might meet the three other criteria but does not have the ability to enter into international relations on its own)

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3. Recognition

International Law

STATEHOOD & RECOGNITION

- Recognition is used in a broad sense referring to **the act by which a state officially acknowledges the existence of another state or government. It is a complex mixture of politics and law.**

- The international law on recognition, is often an extension of politics.

- Lack of diplomatic relations between two states does not necessarily mean absence of recognition

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Two Theories of Recognition

Declaratory theory:

- When an existing state 'recognises' a new state this is said to be nothing more than an acknowledgment of a pre-existing legal capacity (statehood).
- The attainment of statehood by an entity is not depended on recognition by other existing states.

Constitutive theory:

- Recognition is seen as necessary precondition to the existence of a state. Recognition by other states that creates the new state and confers to it legal personality.
- No recognition, no existence.

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International Law

STATEHOOD & RECOGNITION

An act of recognition may be an indication that an entity:

- meets all necessary factual criteria for statehood stipulated in the Montevideo Convention
- enjoys legitimacy under international law, and, thus, the entity has reached statehood.

Collective recognition: Recognition by a group of states within the framework of an IOs

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International Law

STATEHOOD & RECOGNITION

Illegality and recognition

Non-recognition may serve to prevent an entity from achieving statehood if the means used to achieve the criteria of the Montevideo Convention were illegal.

See:

- ***1970 Declaration on Principles of International Law concerning Friendly Relations and Cooperation among States in accordance with the Charter of the United Nations***, UN General Assembly
- ***Declaration of independence in respect of Kosovo***, Advisory Opinion, 2010, ICJ: The Court suggested that "the unlawful use of force or other egregious violations of norms of general international law, in particular those of a peremptory character (jus cogens)" that a state should not be recognised.

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Turkish Republic of Northern Cyprus

- In 1974 Turkey invaded Cyprus and occupied the northern part of the island, “TRNC” declaration of indepence in 1983, only recognised by Turkey => declared invalid by UN Security Counci resolutions 541 (1983) and 550 (1984))

“…Concerned at the declaration by the Turkish Cypriot authorities issued on 15 November 1983 which purports to create an independent State in northern Cyprus,

Considering that this declaration is incompatible with the 1960 Treaty concerning the establishment of the Republic of Cyprus and the 1960 Treaty of Guarantee,

Considering, therefore, that the attempt to create a "Turkish Republic of Northern Cyprus" is invalid, and will contribute to a worsening of the situation in Cyprus…

Deplores the declaration of the Turkish Cypriot authorities of the purported secession of part of the Republic of Cyprus;

Considers the declaration referred to above as legally invalid and calls for its withdrawal…”



A few other examples of contested/aspiring statehood (not exhaustive list)

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- **Abkhazia & South Ossetia, as well as Transnistria** (formally recognised only by Russia and a handful of other states)
- **Western Sahara** (former Spanish colony, invaded and annexed by Morocco in 1975, declaration of independence by exiled Polisario, recognised by 46 UN member states)
- **Kosovo** (declared independence in 2008, recognised by more than 100 UN member states, EU split, member of IMF & World Bank, among others)

- **Palestine** (PLO declaration of independence in 1988, nominal control over some areas in the context of Israeli occupation, recognised by over 150 UN member states, but currently it only has UN non-member observer status, accession to several treaties => statehood contested)

International Law

STATEHOOD & RECOGNITION

- The **right of peoples to self-determination** is a foundational principle of the United Nations but carries a variety of meanings across different contexts…
- "At a minimum, it entails the entitlement of peoples to have control over their destiny and to be treated respectfully. This includes peoples being free to pursue their economic, social and cultural development…" Australian Government
- Charter of the United Nations Article 1(2): "To develop friendly relations among nations based on respect for the **principle of equal rights and self-determination of peoples**, and to take other appropriate measures to strengthen universal peace" (note that the Charter did not frame this as a right)
- Subsequently **enshrined as a human right** (ICCPR, Art. 1): "All peoples have the right of self-determination. By virtue of that right they freely determine their political status and freely pursue their economic, social and cultural development"

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Part A. Introduction and Statehood (cont.)



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4. Modes of Territorial Acquisition

Acquisition of Territory in International law

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- Establishment of sovereignty over a given piece of land (continental territory or an island).

- A state can acquire title of sovereignty to new territory in a number of ways (known as 'modes of acquisition of territory').
  1. **Cession**
  2. **Accretion**
  3. **Effective Occupation of Terra Nullius**
  4. **Prescription**
  5. **Conquest (Belligerent Occupation)**

1. CESSION

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- A State can purchase territory from another state through cession. e.g. US purchase of Alaska from Russia in 1867 and the 1917 US acquisition of the Danish West Indies from Denmark.

- The state that acquires the territory cannot obtain more rights to the territory than those possessed by the ceding state. Additionally, the acquiring state must respect the potential rights of third states & indigenous population.

2. ACCRETION

- New land is created gradually by nature e.g. new islands are formed by volcanic eruption.
- 1986: an undersea volcano and the creation of a new island in Japan's territorial sea.



2. ACCRETION

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Article 60, UN Convention on Law of the Sea 1982

1. In the exclusive economic zone, the coastal State shall have the exclusive right to construct and to authorize and regulate the construction, operation and use of: (a) artificial islands…for the purposes provided for in article 56 and other economic purposes.

8. Artificial islands, installations and structures do not possess the status of islands. They have no territorial sea of their own, and their presence does not affect the delimitation of the territorial sea, the exclusive economic zone or the continental shelf.

What is an island??



Is a disused offshore military platform, an island?

The Regime Islands

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Article 121(1) of UNCLOS:

"An island is a naturally formed area of land, surrounded by water, which is above water at high tide."

→Thus, artificial (human-made) islands and low-tide elevations (i.e. naturally formed area of land submerged at high tide) are not subject to sovereignty claims.

3. Occupation of terra nullius

- A state can obtain title to newly discovered territory i.e. terra nullius
- Title is acquired through occupation when a state demonstrates that it exercises effective control over a territory of 'no-man's land and intends to obtain title.

4. Occupation THROUGH PRESCRIPTION

- A state acquires title to territory previously under the sovereignty of another state.
- Controversial mode: derives from some form of **implied consent** from the dispossessed state.
- The element of consent means that the acts of the acquiring state must be peaceful and that sustained protests and objections by the 'old' state will prevent prescription.

5. BELLIGERENT OCCUPATION

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- Using force to conquer foreign territory **used to be** a means of acquiring new territory.
- Since UN Charter 1945: a state can not acquire territory through conquest (prohibition of acquisition of territory through the use of force).
- Instead, one state's military occupation of the territory of another state activates the international legal regime on belligerent occupation.
- State territory shall not be the object of acquisition by force and that attempts to disrupt the territorial integrity of a state are incompatible with the purposes and principles of the Charter.

e.g.

- Iraq's attempt to annex Kuwait following 1990 invasion
- Turkey's occupation of North Cyprus following its invasion in 1974
- Russia's 2014 annexation of the Crimean Peninsula in Ukraine & Russian's invasion of Ukraine in 2022.
- Israel and Palestine

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5. Right of Peoples to Self-Determination (& Decolonisation Context)

The case of the Chagos Islands

ICJ, *Chagos Island case* (Advisory Opinion) [2019]

- Considered Mauritius' claim over the Chagos archipelago, administered by the United Kingdom
- UK had "no doubt" that it had sovereignty over the Chagos Islands it called the British Indian Ocean Territory (home to an important military base)
- 2019 ICJ Advisory Opinion **affirming the right of self-determination of the people concerned and noting the UK's obligation to complete the decolonisation of Mauritius**
- In late 2022, Mauritius and the UK began negotiatios on the future status of the Chagos



Source: Temsias

International Law

STATEHOOD & RECOGNITION

- Prominent role during the **decolonisation process during the 1950s to 1970s**
- ***Declaration on the Granting of Independence to Colonial Territories and Peoples* (1960):** "The subjection of peoples to alien subjugation, domination and exploitation constitutes a denial of fundamental human rights, is contrary to the Charter of the United Nations and is an impediment to the promotion of world peace and co-operation."
- Has been recognised by the **International Court of Justice (ICJ)** as an international law norm and eventually confirmed customary international law status:

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STATEHOOD & RECOGNITION

- Right to self-determination is well established e.g. UN Charter and related UNGA resolutions,
- Also see Chagos case, self-determination in the decolonisation context, only one aspect.
- **However, a right of a peoples to unilaterally secede a piece of territory from an existing state is highly contentious (see Kosovo/Serbia case 2008)**
- Also arising in the context of referrendum for secession/independence => examples include South Sudan (2010) and failed attempts in Quebec (1979 & 1995) and Scotland (2014), but also contested unilateral attempts in the Kurdish region of Iraq (2017) and Catalonia in Spain (2017)
- Argument was made that “right to self-determination” includes the right to secede from an existing state in extreme cases when an ethnic population has been subjected to systematic discrimination and oppression by the government, and thus the declaration of independence is a legitimate exercise of their right to self-determination.
- **Supreme Court of Canada re Secession of Quebec [1998] 2 SCR 2017**: The ruling addressed the question of whether Quebec had the legal right to unilaterally secede from Canada under Canadian and international law. It held that unilateral secession is not consistent with international law or the Canadian Constitution.

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The International Court of Justice (ICJ), the principal judicial organ of the United Nations, held public hearings on the request for an advisory opinion on the ***Legal Consequences arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, including East Jerusalem.***

Watch here Prof Phillippe Sands KC addressing the ICJ on the subject of the Palestinian Peoples' Right to Self-Determination (from 02:05:00)

LINK: https://webtv.un.org/en/asset/k13/k13rkfn0l5?kalturaStartTime=7529

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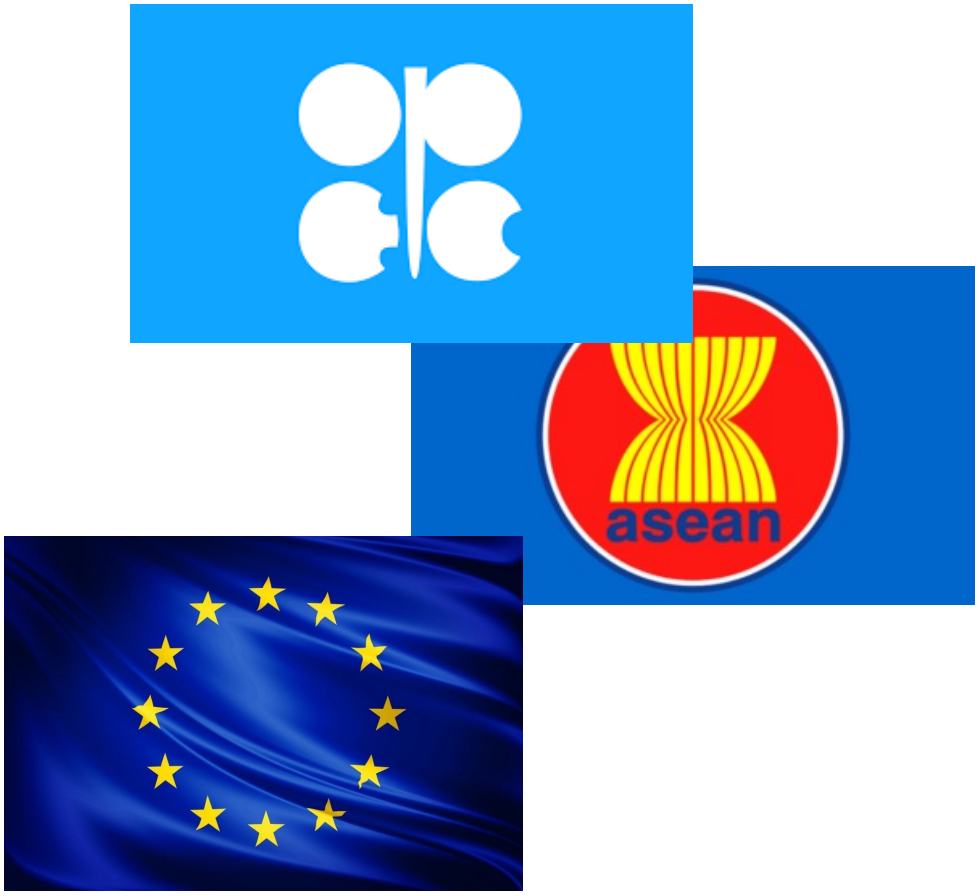
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Part C. International Organisations

Background

- International Organisations (IOs) are a relatively recent phenomenon (19th century)
- Early IOS: The Danube Commission (1856), the Permanent Court of Arbitration (PCA) (1899)
- The turn of the 20th century marks a shift in the functions and purposes of IOs with increased interest in global issues such as peace and security, health, trade, etc.

  E.g.: League of Nations (1919), World Trade Organization (WTO), World Health Organization
- Global and regional international organisations.



What is an International Organisation? (Definition)

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Draft articles on the responsibility of international organizations 2011 (ARIO) Art. 2 (a)

"means an organization established by a treaty or other instrument governed by international law and possessing its own international legal personality. International organizations may include as members, in addition to States, other entities"

What is an International Organisation? (Definition)

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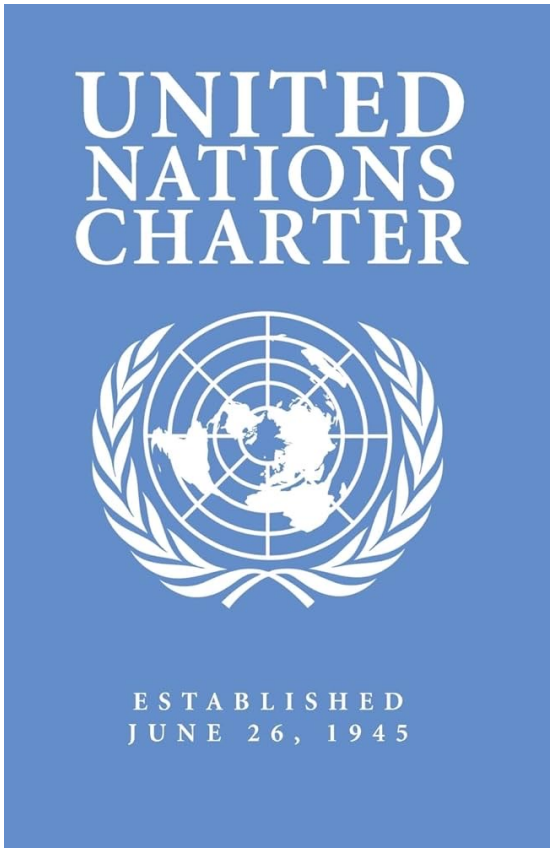
Governed by international law

➔ As opposed to domestic law

AND

Established by a treaty or other instrument

Distinct from non-governmental organisations and informal networks such as G20, Greenpeace, Amnesty International, etc.



What is an International Organisation? (Membership)

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Who can be a member?

- ✓ **UN Charter (1945) Art. 4**

"Membership in the United Nations is open to all other peace-loving states which accept the obligations contained in the present Charter and, in the judgment of the Organization, are able and willing to carry out these obligations".

- ✓ **Convention on the Organisation for Economic Co-operation and Development (OECD) (1960) Art. 16**

"The Council may decide to invite any Government prepared to assume the obligations of membership to accede to this Convention".

- ✓ **The North Atlantic Treaty (1949) Art. 10**

"The Parties may, by unanimous agreement, invite any other European State in a position to further the principles of this Treaty and to contribute to the security of the North Atlantic area to accede to this Treaty".

What is an International Organisation (Membership (cont'd)

Withdrawal ➔ At the initiative of the member

Can be provided for in the constitutive instrument.

E.g.: ICC, Rome Statute, Art. 127

> "A State Party may, by written notification addressed to the Secretary-General of the United Nations, withdraw from this Statute. The withdrawal shall take effect one year after the date of receipt of the notification, unless the notification specifies a later date."

Expulsion ➔ At the initiative of the IO.

E.g.: UN Charter, Art. 6

> "A Member of the United Nations which has persistently violated the Principles contained in the present Charter may be expelled from the Organization by the General Assembly upon the recommendation of the Security Council".

What is an International Organisation? (Legal Personality)

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International legal personality

- Conclude treaties
- Send and receive delegations
- Bring an international claim to defend a legal right
- Responsibility for their wrongdoing

What is an International Organisation? (International Legal Personality cont'd)

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Conferral of international legal personality

Explicit: by treaty (e.g. constitutive instrument)

WTO, Art. VIII

> "The WTO shall have legal personality, and shall be accorded by each of its Members such legal capacity as may be necessary for the exercise of its functions."

Implicit: conferral of international legal personality can be granted implicitly

What is an International Organisation? (International Legal Personality cont'd)

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Reparation for Injuries Advisory Opinion, ICJ,1949, p. 179

In the opinion of the Court, the Organization was intended to exercise and enjoy, and is in fact exercising and enjoying, functions and rights which can only be explained on the basis of the possession of a large measure of international personality and the capacity to operate upon an international plane. It is at present the supreme type of international organization, and it could not carry out the intentions of its founders if it was devoid of international personality. It must be acknowledged that its Members, by entrusting certain functions to it, with the attendant duties and responsibilities, have clothed it with the competence required to enable those functions to be effectively discharged.

Accordingly, the Court has come to the conclusion that the Organization is an international person. That is not the same

Powers of IOs

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Principle of Attribution (or speciality, or conferred powers)

- IOs have no general competence
- IOs have the powers given to them by their members

E.g. (power to create specific organs, competence over certain categories of disputes, power to consider certain situations)

Legality of the Threat or Use of Nuclear Weapons (Advisory Opinion) ICJ, 1996, para 25

The Court need hardly point out that international organizations are subjects of international law which do not, unlike States, possess a general competence. International organizations are governed by the **"principle of speciality**", that is to say, they are invested by the States which create them with powers, the limits of which are a function of the common interests whose promotion those States entrust to them."

Powers of IOs

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Express vs Implied Powers

➔ Express

Explicitly attributed to the IOs.

E.g.: under Art. 42 of the UN Charter the UN, through the Security Council, can authorise the use of force.

➔ Implied

Not explicitly attributed but considered necessary for the organisation to fulfil its functions.

Reparation for Injuries Advisory Opinion, ICJ,1949, p. 182

"Under international law, the Organization must be deemed to have those powers which, though not expressly provided in the Charter, are conferred upon it by necessary implication. as being essential to the performance of its duties."

Responsibility of IOs

- Distinction between the responsibility of the organisation and the responsibility of its members.
- The International Tin Council: the IO, not member states, responsible.
- Draft articles on the responsibility of international organizations 2011 (ARIO)

Article 3 Responsibility of an international organization for its internationally wrongful acts

Every internationally wrongful act of an international organization entails the international responsibility of that organization.

Article 4 Elements of an internationally wrongful act of an international organization

There is an internationally wrongful act of an international organization when conduct consisting of an action or omission: (a) is attributable to that organization under international law; and (b) constitutes a breach of an international obligation of that organization.

Responsibility of IOs

General principle
Article 6 ARIO

1. The conduct of an organ or agent of an international organization in the performance of functions of that organ or agent shall be considered an act of that organization under international law, whatever position the organ or agent holds in respect of the organization.

2. The rules of the organization apply in the determination of the functions of its organs and agents.

UN Peacekeeping organs are:

- ✓ Subsidiary organs of the UN
- ✓ Acting under the control of the UN Security Council and General Assembly
- ✓ Composed of troops contributed by member states which retain jurisdiction over them and residual control.

Article 7 ARIO
The conduct of an organ of a State or an organ or agent of an international organization that is placed at the disposal of another international organization shall be considered under international law an act of the latter organization if the organization exercises effective control over that conduct.



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